

MUTUAL NON-DISCLOSURE AGREEMENT

This Agreement is entered into by and between Acme Corporation and Beta Industries, LLC.

1. Confidentiality

The Receiving Party shall hold all Confidential Information in strict confidence for a period of five (5) years from the date of disclosure.

2. Term and Termination

This Agreement commences on the Effective Date and continues for two (2) years. Either party may terminate this Agreement upon thirty (30) days written notice.

3. Indemnification

Supplier shall indemnify and hold harmless the Buyer against any third-party claims arising from Supplier's gross negligence or willful misconduct.

4. Breach Notification

Vendor shall notify Customer within seventy-two (72) hours of any data breach affecting personal data processed under this Agreement.

5. Liquidated Damages

In no event shall either party's aggregate liability exceed the fees paid in the prior twelve months. The parties agree such liquidated damages are a reasonable estimate.

6. Governing Law

This Agreement is governed by and construed in accordance with the laws of the State of Delaware.

7. Miscellaneous

Provider shall process all personal data and maintain data security; any sub-processor must be approved in writing before any data breach exposure can occur.

8. Counterparts

This Agreement may be executed in counterparts, each of which is deemed an original.